

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

MICHELLE K DIAMOND,

Petitioner

VS.

LEE S DIAMOND,

Respondent

) Case Number: FDI-21-795339

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

CHANGE OF CHILD CUSTODY, OST; MODIFICATION OF LEGAL CUSTODY (RE JONAH  
DIAMOND)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Michelle Diamond (Mother) and Respondent Lee Diamond (Father).  
They share two minor children: Jonah Diamond (age 11) and Micah Diamond (age 8).
- 2) On June 30, 2026, Father filed a request for emergency child custody orders. In particular, Father  
is seeking tie-breaking authority for all education related decisions as to Jonah.
- 3) On July 27, 2026, Mother filed a Responsive Declaration in which she asks the Court to deny  
Father's requests.
- 4) On July 27, 2026, Mother's attorney, Kate Merrill filed a "Declaration in Response to  
Respondent's Request Regarding Grade Retention."

**B. Findings and Order**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
2 child(ren) is the United States.

- 3 2) Father's requests, as contained within the emergency Request for Order he filed on June 30, 2026,  
4 is DENIED. The Court has reviewed the pleadings in their entirety and the Court is not willing to  
5 give either parent "tie-breaking" authority. The parties just completed an extensive year-long  
6 child custody evaluation. The Court is troubled by the fact that both parents are not working  
7 together. However, the Court is compelled by the recommendations of the educational  
8 professionals who have promoted Jonah to the sixth grade. The Court will not disturb their  
9 recommendations.
- 10 3) Mother's request for attorney's fees is DENIED without prejudice.
- 11 4) All existing orders, not in conflict with the orders made herein, remain in full force and effect.
- 12 5) The Court will prepare the Findings and Order After Hearing.
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